

SENATE No.

The Commonwealth of Massachusetts

PRESENTED BY:

Bruce E. Tarr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to providing alternative compliance for multi-family zoning requirement for MBTA communities.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>1/31/2025</i>

SENATE No.

By Mr. Tarr, a petition (accompanied by bill) (subject to Joint Rule 12) of Bruce E. Tarr and Colleen M. Garry for legislation to provide alternative compliance for multi-family zoning requirement for MBTA communities. Municipalities and Regional Government.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to providing alternative compliance for multi-family zoning requirement for MBTA communities.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION_. Section 3A of Chapter 40A of the general laws as appearing in the 2022
2 official edition is hereby amended by adding at the end thereof the following new subsection: -

3 (d) The Executive office of housing and livable communities shall develop and
4 promulgate regulations to allow a municipality affected by the zoning provisions of this section
5 to appeal for relief from such provisions based on one or more of the following:

6 1. The inability to meet the drinking water supply requirements necessary to support the
7 housing units authorized by such provisions

8 2. The inability to meet the wastewater treatment requirements necessary to support such
9 units

10 3. The inability of municipal transportation infrastructure to safely accommodate
11 increased population attributable to housing development pursuant to such provisions

- 12 4. Any adverse environmental impacts attributable to the developments of housing units
- 13 pursuant to such provisions.